

OFFICE OF THE SECRETARY

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April 9, 2019

The Honorable Timothy R. Walsh
Judge of the Superior Court
County of San Diego
P.O. Box 122724
San Diego, CA 92112

Re: Eric Rodriguez
CDCR No: AE9852
Case No: SCS219199
Date of Sentence: September 27, 2010

Dear Honorable Timothy R. Walsh:

The purpose of this letter is to provide the court with the authority to resentence inmate Eric Rodriguez, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Rodriguez's prior criminality concerns appeared to stem from drug abuse and Security Threat Group (STG) ties in the community. Rodriguez voluntarily elected to disassociate from all STG activity during Reception Center processing. Since his arrival to CDCR on October 7, 2010, Rodriguez has not received any Rules Violation Reports. In addition, Rodriguez has submitted to a total of six random urinalysis tests during this period of incarceration; all of which have returned with negative results.

Rodriguez is very involved in mentoring Youthful Offenders, in the Youth Diversion Program and is currently in the process of becoming a Certified Drug and Alcohol Counselor through the Offender Mentor Certification Program. Rodriguez has received multiple Laudatory Chrono's and has been very involved in voluntary Self-Help Programs and Self-Help Workshops. In addition, Rodriguez has certificates of completion for Vocational Computer and related Technology Office Services and Vocational Masonry. Rodriguez has earned his General Education Development Certificate in 2012 and has been voluntarily attending Correspondence College.

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Having reviewed the enclosed documentation it appears that inmate Rodriguez's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Michael M. Roddy, County Court Executive Officer
San Diego County District Attorney's Office
San Diego County Public Defender's Office